

Stereo. HC JD A 38.
Judgment Sheet
**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT**

Criminal Appeal No.542 - J-ATA of 2018
(Muhammad Shabbir alias Hanzla and another. Vs. The State)

JUDGMENT.

Date of hearing: 12.06.2019.
Appellants by: Mr. Mehmood Khan Ghauri, Advocate.
State by: Ch. Muhammad Akbar, Deputy Prosecutor General.

SADIQ MAHMUD KHURRAM, J.— The appellants (convicts), namely, Muhammad Shabbir alias Hanzla and Muhammad Khubaib were tried by the learned Judge, Anti-Terrorism Court-I, Multan, in case FIR No.49 of 2017, dated 12.10.2017, registered at Police Station CTD Multan, in respect of offences under sections 4/5 of the Explosive Substances Act, 1908 and section 7 of the Anti-Terrorism Act, 1997. The learned trial court vide judgment dated **12.04.2018** convicted Muhammad Shabbir alias Hanzla and Muhammad Khubaib (convicts) and sentenced each of them as infra:

“Under section 5 of the Explosive Substances Act, 1908: Rigorous imprisonment of three years each and forfeiture of all moveable and immoveable properties of the appellants under section 5-A of the Explosive Substances Act, 1908.

The appellants, however, were acquitted of the charge under section 7 of the Anti-Terrorism Act, 1997 by the learned trial court.

The appellants were also extended the benefits provided under section 382-B of the Code of Criminal Procedure, 1898.”

2. Feeling aggrieved, Muhammad Shabbir alias Hanzla and Muhammad Khubaib (convicts) lodged the instant Criminal Appeal No.542-J-ATA of 2018 against their conviction and sentences.

3. Precisely the facts necessary, as divulged in the statement of Muhammad Shoaib 960/CPL, (PW-4) are as under:

“On 12.10.2017, I was posted as Corporal CTD Circle, Khanewal. On the same night, I alongwith Azhar Hayat 965/CPL, Muhammad Naeem 970/CPL, Waseem Akhtar 958/CPL alongwith operation team while boarding official vehicles were present in Niazi Chowk in connection with surveillance duty of members of proscribed organization. I received information through source that two unknown person who belongs to proscribed organization Al-Qaida of Subcontinent and TTP might having explosive material in their possession, were present at Lahore Morr Khanewal. Accused present there with intend to attack on important installations. If they raid conducted they be arrested. On this information, in constituted a raiding party. I reached at 8.45 PM at place of occurrence Lahore Morr. On seeing police vehicles accused tried to flee away, we apprehended the accused with the help of operation team. On interrogation, first person disclosed his name as Muhammad Shabbir son of Hafeez Ullah Caste Bhatti resident of Mouza Norang Ahmad Pur Sharqia. A hand bag holding in his right hand was checked. From the said bag P-1, two hand grenades P-9 & p-10 wrapped in piece of newspaper P-5/1-2 were recovered. On his personal search, from his right side pocket, net cash Rs.1250/- with the denomination of currency note of Rs.1000/- P-6, two currency notes of Rs.100/- each P-7/1-2 and one currency note of Rs.50 P-8 were recovered. Second persons disclosed his name as Muhammad Khubaib son of Ayaz Caste Baloch resident of Din Pur Tehsil Khanpur District Rahim Yar Khan. A hand bag holding in his right hand was checked. One hand grenade P-13 wrapped in handkerchief P-18 was recovered from the hand bag P-15. On his personal search, from his right side pocket net cash of Rs.1050/- with the denomination of two currency notes of Rs.500/- each P-19/1-2, one currency note of Rs.50/- P-20 were recovered. According to strategy, I placed the hand grenades on the ground. I informed Bomb Disposal Squad through telephone. Accused present in court possessed the hand grenades for terrorism activities. On this, I drafted written complaint Ex.PM and sent the same for registration of FIR through Waseem Akhtar 958/CPL at Police Station CTD.

From the hand bag of Muhammad Shabbir accused, one washing wear suit P-2 of light sky colour, one banyan P-3, Zarband P-4, and from

the hand bag of Muhammad Khubaib one washing wear suit P-16, one Zarband P-17 were recovered. I handed over recovered all articles to I.O who too (sic) into possession through separate recovery memos respectively. I.O recorded my statement U/S 161 Cr.P.C. in this regard.”

4. The learned trial court framed charges against the appellants on 21.12.2017 to which they pleaded not guilty and the learned trial court proceeded to examine the prosecution witnesses.

5. The prosecution in order to prove its case got recorded statements of **five** witnesses. Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5) were the eye witnesses of the occurrence and also the witnesses of the recoveries effected from the appellants in the case. Muhammad Shahid Shahzad BDT, Civil Defense Officer, Khanewal (PW-1) stated that on 12.10.2017 he defused the hand grenades and also obtained samples of the explosive from each of the three grenades and handed over to the Investigating Officer. He further proved his report (Exh.PA). Allah Waris 968/CPL (PW-3) stated that on 12.10.2017 he recorded the formal FIR (Exh.PM/1) and received the case property from the Investigating Officer and on 16.10.2017 handed over three sealed parcels to Azhar Hayat 965/CPL (PW-5) for their onward transmission to the office of the Punjab Forensic Science Agency. Allah Rakha, Inspector (PW-2) investigated the case from 12.10.2017 till 27.10.2017 and detailed the facts of the investigation conducted by him in his statement before the learned trial court.

6. On 29.01.2018, the learned DPG gave up PW Muhammad Naeem 970/C being unnecessary. The learned DPG closed the prosecution evidence on 08.03.2018 after tendering in evidence the report of Punjab Forensic Science Agency (Exh.PN) and list of Banned Organization Mark-A.

7. After the closure of prosecution evidence, the learned trial court examined Muhammad Shabbir alias Hanzla and Muhammad Khubaib (appellants) under section 342 Cr.P.C. and in answer to question “*why this case against you and why the PWs have deposed against you*”, the appellants claimed that they had been falsely involved in this case

and were innocent. The appellants opted not to get themselves examined under Section 340(2) Cr.P.C. and did not adduce any evidence in their defence.

8. On the conclusion of the trial, learned Judge, Anti-Terrorism Court-I, Multan, convicted and sentenced the appellants as referred to above.

9. The contention of the learned counsel for the appellants precisely is that whole case is fabricated and false. The learned counsel contended that the prosecution remained unable to prove the facts and did not produce any unimpeachable, admissible and relevant evidence. The learned counsel further contended that the statements of prosecution witnesses are not worthy of reliance. The learned counsel also argued that there was no corroborative evidence supportive of the prosecution case. The learned counsel finally submitted that the prosecution has totally failed to prove the case against the accused beyond the shadow of doubt and prayed for acceptance of appeals lodged by the appellants.

10. On the other hand, learned Deputy Prosecutor General appearing on behalf of the State contended that the prosecution has proved its case beyond shadow of doubt by producing truthful witnesses and submits that it was a promptly lodged FIR and the appellants were named therein with specific allegation of possessing hand grenades, which excludes the element of deliberation and consultation about their involvement in the instant case; that both the appellants were caught red-handed, which clearly connected them with the commission of crime; that the police officers, who furnished ocular account before the learned trial court, had no enmity, grudge or malice against the appellants to implicate them in this case of heinous nature and even otherwise, the defence has not brought on record any ulterior motive of the police to depose falsely against the appellants, as such they are as good witnesses as the private persons would be; that the ocular account is furnished by the trustworthy and reliable witnesses and that is duly corroborated by the recoveries effected from the appellants; the prosecution case against the appellants stands

proved from all angles, hence, prays for dismissal of the appeals filed by the appellants and maintaining the conviction and sentences awarded to them by the learned trial court.

11. We have considered the arguments advanced by the learned counsel for the appellants and the learned Deputy Prosecutor General for the State and have gone through the entire record with their able assistance.

12. Perusal of written complaint (Exh.PM) and FIR (Exh.PM/1) shows that initially Muhammad Shabbir alias Hanzla and Muhammad Khubaib, appellants, were apprehended by Muhammad Shoaib 960/CPL (PW-4) alongwith other police officers/officials on 12.10.2017, at 08:45 p.m. and at the time of their arrest, hand grenades (Exh.P9 and Exh.P10) were recovered from the possession of Muhammad Shabbir alias Hanzla (appellant) and another hand grenade (Exh.P13) was recovered from the possession of Muhammad Khubaib (appellant) which were taken into possession vide recovery memos Exh.PB and Exh.PG, respectively, by the Investigating Officer, namely, Allah Rakha Inspector, (PW-2). As a consequence of which FIR No.49 of 2017, dated 12.10.2017, was registered at Police Station CTD Multan, in respect of offences under sections 4/5 of the Explosive Substances Act, 1908 and section 7 of the Anti-Terrorism Act, 1997. Muhammad Shoaib 960/CPL (PW-4) drafted written complaint (Exh.PM) at 09:20 p.m and forwarded the same to the Police Station, CTD, Multan, which was situated at a distance of 45 kilometers from the place of occurrence. Consequently, FIR (Exh.PM/1) was lodged against the appellants at 10:20 p.m. Thus, it is apparent that the FIR was got lodged within a short span of one hour and the complainant has not only named the appellants, but has also mentioned each and every minor as well as material fact of the incident therein, which of course excludes the possibility of deliberation or consultation regarding false implication of the appellants in the instant case.

13. The prosecution has also proved its case against the appellants through the statements of Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5), recoveries effected from the appellants

and the positive reports of Punjab Forensic Science Agency (Exh.PN) and report of Bomb Disposal Commander, Civil Defence, Khanewal (Exh.PA). The details of the occurrence have already been mentioned in paragraph No.3 of the judgment. In his statement before the learned trial court as PW-4, Muhammad Shoaib 960/CPL, complainant, reiterated the same facts and leveled the same allegations as are incorporated in the written complaint (Exh.PM) and in the FIR (Exh.PM/1). In order to support the deposition of Muhammad Shoaib 960/CPL (PW-4), the prosecution has relied on the statement of Azhar Hayat 965/CPL (PW-5). Both these witnesses have consistently corroborated the version adopted by each other and after careful scrutiny of the statements of above said prosecution witnesses, namely, Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5), we find that their statements are in line with each other on each and every minor as well as material aspect of the case and smooth flow of facts is apparent from their depositions. They were subjected to lengthy cross-examination by the defence, but without extracting anything beneficial for the appellants. During arguments, learned counsel for the appellants have emphatically urged that Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5) were both police employees and the prosecution has failed to produce even a single private person in support of its case. In this respect, we would like to observe here that the police witnesses are as good witnesses as any other witness until and unless the defence could have successfully shattered their credibility or bring on record any mala fide of police witnesses to depose against the accused. In the instant case, all the witnesses of ocular account stood firm to the test of cross-examination and their credibility could not be shaken by the defence. More so, during trial before the learned trial court and even today before this Court, learned counsel for the appellants have not urged any rancor or animosity of Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5) with the appellants, as such, we are fully satisfied that their statements are free of mala-fides. We would, therefore, like to hold that the depositions of police witnesses cannot be brushed aside merely on the bald allegation that they happened to be employees of police department. Coming to the

question about non-production of any private witness by the prosecution to support its case, we are of the opinion that in cases like the one in hands, people from public try not to indulge themselves as witnesses of the occurrence so as to avoid future enmity with the terrorists. Even otherwise, the prosecution has produced sufficient evidence before the learned trial court to prove ocular account of its case, so it was not under obligation to produce any witness from public that too when it had already produced three police officers, who were as independent witnesses as the private persons may be, because they had also no enmity, ill-will grudge or ulterior motive to depose falsely against the appellants. The outcome of above discussion is that Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5) have successfully proved their credence, therefore, the learned trial court was quite justified to rely on them while awarding conviction and sentences to the appellants and we also do not find any spite with the prosecution witnesses so as to consider their testimony unworthy of reliance.

14. It is also available in the written complaint (Exh.PM) and the FIR (Exh.PM/1) that initially Muhammad Shabbir alias Hanzla and Muhammad Khubaib, appellants, were arrested by Muhammad Shoaib 960/CPL (PW-4) alongwith other police officers/officials on 12.10.2017, at 08:45 p.m. and at the time of their arrest, hand grenades (Exh.P9 and Exh.P10) were recovered from the possession of Muhammad Shabbir alias Hanzla (appellant) and another hand grenade (Exh.P13) was recovered from the possession of Muhammad Khubaib (appellant) which were taken into possession vide recovery memos Exh.PB and Exh.PG, respectively, by the Investigating Officer, namely, Allah Rakha Inspector (PW-2). In this respect, the positive report of the Bomb Disposal Commander, Civil Defence, Khanewal (Exh.PA) is also available on record, which proved that the above hand grenades, if not recovered from the appellants, could have been used for wreaking havoc upon innocent persons. The above recovery has successfully been proved by the prosecution through the statements of Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5), whom we have already held trustworthy and

reliable witnesses. Furthermore, the explosive material from the hand grenades which was taken as sample was sent to the office of Punjab Forensic Science Agency, whose report is also available on record as Exh.PN. As per the said report of the Punjab Forensic Science Agency (Exh.PN) in all items Trinitrotoluene (TNT) was identified which is a high explosive.

15. We have gone through the statements of the appellants recorded by the learned trial court under section 342, Cr.P.C. and found that no plausible justification has been forwarded by them for keeping the above hand grenades in their custody. The recovery of aforementioned hand grenades from the appellants has, therefore, provided enough corroboration to the ocular evidence of Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5) so as to bring their guilt to the hilt.

16. After evaluating the case from all angles, we have come to a definite conclusion that the prosecution has successfully proved its case against the appellants who were caught red-handed and hand grenades were recovered from them. There is no element of doubt in the case in hand, the statements of Muhammad Shoaib 960/CPL (PW-4) and Azhar Hayat 965/CPL (PW-5) inspired confidence and nothing is available on record which could establish that these witnesses deposed against the appellants and implicated them in this case due to previous enmity, grudge or malice or to fulfill some ulterior motive. The ocular evidence is not only corroborated by the recoveries effected from the appellants at the time of their arrest in the instant case, but the positive reports of Bomb Disposal Commander, Civil Defence, Khanewal (Exh.PA) and Punjab Forensic Science Agency (Exh.PN) has also strengthened the claim of the prosecution that the appellants were planning to do something extremely inhumane in the shape of terrorist attacks.

17. For what has been discussed above, we are of the considered view that the judgment impugned through the instant appeal to the extent of conviction and sentences of the appellants does not call for

any interference by this Court, the same are maintained and upheld.
The appeal having no merit is hereby **dismissed**.

(CH.MUSHTAQ AHMAD)
JUDGE

(SADIQ MAHMUD KHURRAM)
JUDGE

*Raheel**

Approved for reporting.

Judge